The Blank

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A Comma Under Scrutiny

Tonight five experts will examine the Commons Clause in the University Charter in public. Their reading of one ink mark could decide whether students can veto the $50 million Innovation Hub.

BY SOFIA ALVAREZ, STAFF WRITER

At six o'clock this evening, a panel of five experts will examine the original University Charter in public and report on a single mark of ink in its Commons Clause. If the mark is a comma, every student at Blank University may get a vote on the future of the Commons. If it is a blot, the administration may not need to ask them.

For several centuries the Commons has been the lawn where Blank University students study, sunbathe, and study while sunbathing. A year ago the university announced a $50 million plan to replace it with an "Innovation Hub": AI-assisted classrooms, a digital library, makerspaces, research offices, labs and an events suite. Administrators have promoted the Hub as a way to improve learning conditions and to put students in the same building as the faculty who teach them.

The students saw it differently and many made their voices heard right away. The primary objection offered by students centered on the loss of the green space at the center of campus. Then things got worse. In a series of articles, The Blank reported on the anonymous donors and found business ties to the contractors hired to do the job as well as to Adrian Vale, Vice President for Campus Development and the senior administrator in charge of the renovation. Vale refused to comment on the allegation of corruption. The Blank also obtained interior design plans for the Hub which reveal that the university plans to use AI-powered facial-recognition scanners at the entrance to every space. The Editorial of this newspaper lambasted the plan, calling the building "Fort Knoxious."

A broad coalition of student organizations, from the most-politically-enthusiastic preservationists to the usually-conflict-averse a cappella group, has formed a parent organization called The Green Commons Coalition to organize protests and look into legal options in order to stop the renovations. Members wear tree pins and green caps around campus, and several prominent faculty members have been seen wearing the pin. A handful of faculty have even joined the vigil that students dressed as trees keep outside President Tricia Tabula's house.

The Coalition soon turned from demonstrations to the law, after its members found a clause in the university's founding Charter now known as the Commons Clause:

> *"No renovation, alteration, or demolition of the Commons shall proceed without the approval of the University Board of Directors, the President, the Provost, the Faculty Senate, the faculty house masters(,) and students of the University."*

To most readers, and especially to students, the clause looks plain enough. The Coalition has demanded a campus-wide student vote and is confident of the result: in a Blank poll, 94 percent of students said they would vote no.

The administration's answer rests on the mark in parentheses. In the original Charter the ink after "masters" is smeared, and for generations transcripts have printed the comma in parentheses because no one could be sure it is one. Without the comma, the university argues, "the faculty house

masters and students" is a single group, and the house masters' approval would satisfy the clause.

The argument was received with skepticism and ridicule on campus until people learned of a 2017 federal appeals court case in Maine, in which a missing Oxford comma cost a dairy company $5,000,000. Commas, it turns out, can decide lawsuits. If the university can show that the mark is not a comma, it may be able to defeat the Coalition's challenge, at least in court.

So the fight over the Commons has transformed into a fight over one little blot of ink. If it is an original comma, students must approve in their own right, and no one can approve on their behalf. If it is ink damage or a later blemish, consulting the house masters may count as consulting the students.

Tonight's examination is the result. The university agreed to examine the original Charter in public before five experts it appointed and the Coalition approved: Amara Voss, a forensic document examiner; Daniel Wei, a professor of art conservation who specializes in paper and parchment; Lenora Bell, a professor of history and paleographer who specializes in the handwriting of the Charter's era; Samuel Ortiz, a professor of imaging science who reads damaged documents under ultraviolet and infrared light; and Ruth Halpern, the university's archivist emeritus. The panel will publish a report giving its considered opinion. Last week The Blank published exclusive photographs of the original Charter, taken out of its exhibit fixture for the first time in decades. That the examination is public at all shows how little many students trust the administration on this project. President Tabula says she welcomes it. In a statement, she said she "believes this is an opportunity to demonstrate the university's commitment to the truth and the open inquiry that serves it."

The examination begins at 6 p.m. in the Great Hall. ■